

25STCV16478 25STCV16478

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-17

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C511%2C09%2F17%2F2026

Source SHA-256: 224ea3fb820c75188e7d00653f81009165038ee0d516b5e44921ef8afd717f56

Case Number: 25STCV16478 Hearing Date: September 17, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
17, 2026

CASE NAME: Alexxandra

Jarrett v. Mercedes-Benz Financial Services USA, LLC

CASE NO.: 25STCV16478

DEMURRER

TO THIRD AMENDED COMPLAINT

MOVING PARTY: Defendant

Mercedes-Benz Financial Services USA LLC

RESPONDING PARTY(S): Plaintiff Alexxandra Jarrett

REQUESTED RELIEF:

1. Demurrer

to the first, second, third, and fourth causes of action for failing to state
sufficient facts to constitute a cause of action.[1]

TENTATIVE RULING:

1. Demurrer

to the first, second, and third causes of action are SUSTAINED without leave to amend;

2. Demurrer

to the fourth cause of action is OVERRULED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On June 6, 2025, Plaintiff Alexxandra Jarrett (Plaintiff) filed a complaint against Defendant Mercedes Benz Financial Services USA LLC (Defendant) with causes of action for: (1) breach of contract; (2) unlawful repossession; (3) breach of peace; (4) FDCPA/CLRA; (5) conversion; (6) trespass to chattels; and (7) failure to provide required notice.

On July 14, 2025, Defendant filed an answer.

On September 29, 2025, Defendant filed a notice of removal to federal court.

On December 15, 2025, the clerk filed a notice of remand from federal court.

On January 5, 2026, Plaintiff filed the operative first amended complaint (FAC) against Defendants Mercedes Benz Financial Services USA LLC (Mercedes) and A-Z Recovery (A-Z) (sometimes collectively Defendants) with causes of action for: (1) wrongful repossession/breach of the peace; (2) violation of Comm. Code §§ 9609, 9611, 9623, 9626; (3) violation of Vehicle Leasing Act – Civ. Code § 2985.8 (against Mercedes only); (4) conversion; and (5) negligence.

According to the FAC, this case involves Defendants' repossession of Plaintiff's leased Mercedes Benz vehicle. Plaintiff alleges that A-Z repossessed the vehicle without allowing Plaintiff to retrieve her personal belongings. Plaintiff alleges that Mercedes took no steps to cure and did not follow various laws allowing Plaintiff the opportunity to make payments, recover the vehicle, or recover her belongings.

On January 9, 2026, Mercedes filed a demurrer to the FAC with motion to strike which the court SUSTAINED with leave to amend and DENIED as moot.

On February 6, 2026, Plaintiff filed a motion for leave to amend the FAC to file an amended complaint which the court DENIED without prejudice.

On April 7, 2026, Plaintiff filed a Second Amended Complaint (SAC). She added additional allegations and a cause of action for intentional infliction of emotional distress.

On May 11, 2026, Mercedes filed a demurrer to the SAC which the court SUSTAINED with leave to amend.

On July 8, 2026, Plaintiff filed the operative Third Amended Complaint (TAC).

On August 10, 2026, Mercedes filed the instant demurrer. On September 4, 2026, Plaintiff filed an opposition.[2] On September 10, 2026, Mercedes filed a reply.

LEGAL STANDARD:

Meet and Confer

;

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). ; The meet and confer requirement also applies to motions to strike. (CCP § 435.5.);

Here, Mercedes' counsel filed a Judicial Council form CIV-140 indicating meet and confer occurred by telephone at least five days before the deadline to file the demurrer and motion to strike. (Kemp Decl. ¶ 2(a).) The requirement is therefore met.

Demurrer –

Sufficiency of Facts

1

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn 147 Cal.App.4th at 747.)

2

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

ANALYSIS:

First Cause of

Action – Wrongful Repossession / Breach of the Peace

Mercedes contends this claim fails because they are immune from liability under Bus. & Prof. Code § 7507.13(b) because A-Z is a licensed repossession agent. Plaintiff argues she alleged Mercedes’ independent conduct.

“After default, a secured party may . . . (1) Take possession of the collateral.” (Comm. Code § 9609(a).) A secured party may do so pursuant to judicial process or “[w]ithout judicial process, if it proceeds without breach of the peace.” (Id. at subd. (b).)

Bus. & Prof. Code § 7507.13(b) states:

The legal owner, debt collector, debtor, lienholder, lessor, lessee, or registered owner, or the agent of any of them, is not liable for any act or omission by a licensed repossession agency, or its agent, in carrying out an assignment or repossession order and is entitled to indemnity from the repossession agency for any loss, damage, cost, or expense, including court costs and attorney's fees, that the legal owner, debt collector, debtor, lienholder, lessor, lessee, or registered owner, or the agent of any of them, may reasonably incur as a result thereof. Nothing in this subdivision limits the liability of any person for his or her tortious conduct.

After reviewing the TAC, Plaintiff's claims against Mercedes are still barred by Bus. & Prof. Code § 7507.13(b). As before, the central point of Plaintiffs' complaint against Mercedes is how A-Z repossessed the vehicle. (TAC p.3:4-4:10.) She alleges Mercedes acknowledged the agent's conduct was improper. (TAC 4:13-17.) This allegation defeats her ratification argument. As before, this cause of action is based on the repossession conduct by A-Z. Plaintiff previously alleged that A-Z is a licensed repossession company. (SAC ¶ 7.) Now she alleges they are a repossession company acting as Mercedes' operational agent for purposes of the repossession. (TAC 2:18-19.) Plaintiff did not allege facts that demonstrate Mercedes' own tortious conduct. Finally, the court rejects Plaintiff's argument that the non-delegable duty doctrine provides liability as that would negate the Legislature's "clear and unequivocal" expression of providing indemnity. (See, e.g., *Presbyterian Camp & Conference Centers, Inc. v. Superior Court* (2021) 12 Cal.5th 493, 503 ["A statute will be construed in light of common law decisions, unless its language clearly and unequivocally discloses an intention to depart from, alter, or abrogate the common-law rule concerning the particular subject matter."] [internal citations omitted].)

Accordingly, the court SUSTAINS Mercedes' demurrer to the First Cause of Action without leave to amend.

Second Cause of Action – Violation of Civ. Code §§ 2985.8, 2983.2 (Vehicle Leasing Act)

Mercedes argues this statute does not afford the relief sought. Plaintiff argues a different statute does.

The Vehicle Leasing Act details obligations for each party that must be included in the lease agreement. (Civ. Code § 2985.8(a).) One requirement is the following notice: "You have the right to return the vehicle, and receive a refund of any payments made if the credit application is not approved, unless nonapproval results from an incomplete application or from incorrect information provided by you." (Id. at subd. (f).)

Civ. Code § 2983.2(a) provides:

[A]ny provision in any conditional sale contract for the sale of a motor vehicle to the contrary notwithstanding, at least 15 days' written notice of intent to dispose of a repossessed or surrendered motor vehicle shall be given to all persons liable on the contract. The notice shall be personally served or shall be sent by certified mail, return receipt requested, or first-class mail, postage prepaid, directed to the last known address of the persons liable on the contract.

Civ. Code § 2983.2(b) provides:

Unless automatically provided to the buyer within 45 days after the disposition of the motor vehicle, the seller or holder shall provide to any person liable on the contract within 45 days after their written request, if the request is made within one year after the disposition, a written accounting regarding the disposition.

These provisions do not apply to a lease where the lessee will not become the vehicle's owner at the end of the lease. (Civ. Code §§ 2981(a)(2), 2981.5.)

After reviewing the TAC, Plaintiff failed to state a claim. First, she alleges a lease agreement with Mercedes. (TAC 3:1-2.) Second, she alleges Mercedes provided inconsistent and unitemized reinstatement amounts verbally, never delivered written paperwork, did not start sending notices until after she filed this lawsuit, sent a notice to her mother who resides at a different address, delayed accounting, and issued a facially defective statement. (TAC 7:26-8:11.) Plaintiff alleges that, as a result, Mercedes has waived any legal right to claim a deficiency balance

against Plaintiff. (TAC 8:11.) However, it is unclear what relief Plaintiff seeks let alone damages as requested in her prayer for relief.

Accordingly, the court SUSTAINS Mercedes' demurrer to the second cause of action without leave to amend.

Third Cause of

Action – Violation of UCC Article 2A (Comm. Code §§ 2A-525, 2A-527, 2A-528)

Mercedes argues this statute does not afford the relief sought. Plaintiff argues a different statute does.

After a default by the lessee under the lease contract of the type described in Section 2A-523(1) or 2A-523(3)(a) or, if agreed, after other default by the lessee, the lessor has the right to take possession of the goods. If the lease contract so provides, the lessor may require the lessee to assemble the goods and make them available to the lessor at a place to be designated by the lessor which is reasonably convenient to both parties. Without removal, the lessor may render unusable any goods employed in trade or business, and may dispose of goods on the lessee's premises (Section 2A-527).

(U. Comm. Code § 2A-525(2).)

“The lessor may proceed under subsection (2) without judicial process if it can be done without breach of the peace or the lessor may proceed by action.” (U. Comm. Code § 2A-525(3).)

UCC section 2A-527 pertains to the lessor's rights to dispose of the goods. UCC section 2A-528 pertains to the lessor's damages for non-acceptance, failure to pay, repudiation, or other default.

As before, these code sections do not provide for the relief Plaintiff seeks. They apply to the lessor's rights.

Accordingly, the court SUSTAINS Mercedes' demurrer to the third cause of action without leave to amend.

Fourth Cause of

Action – Trespass to Chattels/Conversion

Mercedes reiterates their immunity argument here and point out that Plaintiff did not allege right to possession of the vehicle or Mercedes' interference with or disposition of Plaintiff's property. Plaintiff argues she sufficiently stated this claim due to Mercedes' interference with retrieving her personal property.

The elements for a claim of conversion are: "(1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property right; and (3) damages." (IIG Wireless, Inc. v. Yi (2018) 22 Cal.App.5th 630, 650; Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1271.) Intentional destruction or alteration of property may constitute conversion of property. (Martinez v. Robledo (2012) 210 Cal.App.4th 384, 387.) If the interference is less significant than the exercise of complete dominion or control, the proper claim is for trespass to personal property. (See Jamgotchian v. Slender (2009) 170 Cal.App.4th 1384, 1400-1401.) Wrongful intent is not required. (Mendoza v. Rast Produce Co., Inc. (2006) 140 Cal.App.4th 1395, 1405.)

Returning the property impacts damages. (Krusi v. Bear, Stearns & Co. (1983) 114 Cal.App.3d 664, 673 ["the plaintiff's damages will be reduced if the defendant returns the property or the plaintiff otherwise recovers the property."]) So, the court rejects Mercedes's arguments to the extent they attack the conversion claim due to return of the personal property.

As before, Plaintiff has really alleged a claim of trespass to chattels/personal property against Mercedes.

The elements of a claim for trespass to personal property are: (1) plaintiff owned, possessed, or had a right to property, (2) defendant's intentional interference with plaintiff's use or possession, (3) no consent by plaintiff, (4) harm, and (5) causation. (Intel Corp. v. Hamidi (2003) 30 Cal.4th 1342, 1350-1351.) A defendant may temporarily dispossess plaintiff of the property, including by blocking access to it. (Jamgotchian v. Slender (2009) 170 Cal.App.4th 1384, 1401.) To be actionable, defendant's interference must have caused some injury to the property or to

plaintiff's rights in the property. (Intel Corp. supra, at p. 1350.)

Here, Plaintiff has sufficiently alleged a claim for trespass to chattels. Plaintiff alleged that Mercedes refused to disclose the Vehicle's location to Plaintiff so she could retrieve her personal property, sold the Vehicle with her personal property inside, and eventually returned her property in a damaged box. (TAC 10:1-8, 15-16.) She further alleges specific damages from loss of use of her daily toll transponder of \$450.00 and \$50.00 in damage for the other, unidentified, physical items. (TAC ¶ 19-23.)

Accordingly, the court OVERRULES Mercedes' demurrer to the fourth cause of action.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the first, second, and third causes of action are SUSTAINED without leave to amend;

2. Demurrer

to the fourth cause of action is OVERRULED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 17, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Mercedes alternatively moves to strike portions of the TAC pertaining to punitive damages.

[2]

On September 10, 2026, Plaintiff also filed a motion for leave to amend the complaint.